# Master Services Agreement

This Master Services Agreement (the "**Agreement**") is made with effect from 11 December 2024 (the "**Effective Date**") between:

(1) **Seabright Hotels & Resorts Ltd** (the "**Customer**"), a hotel group that owns and operates six hotels; and

(2) **Halcyon Elevator & Lift Maintenance Ltd** (the "**Supplier**").

The Customer and the Supplier are each a "**Party**" and together the "**Parties**".

## 1. Structure and Interpretation

1.1 This Agreement consists of these master terms, Schedule 1 (Services and Service Levels) and Order Form No. 1 (the "**Order Form**"). In the event of conflict, the master terms prevail over the Schedules, and the Order Form prevails over the Schedules only as to the commercial terms set out in it.

1.2 The Customer is the contracting party, but the Services are delivered at the individual hotels owned and operated by the Customer and listed in the Order Form (each a "**Property**" and together the "**Properties**").

1.3 Capitalised terms not defined in these master terms have the meaning given in the Order Form or Schedule 1.

## 2. Term and Renewal

2.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues for an initial term of 36 months ending on 11 December 2027 (the "**Initial Term**").

2.2 At the end of the Initial Term, and of each Renewal Term, this Agreement renews automatically for a successive period of 12 months (each a "**Renewal Term**") unless either Party gives the other at least 120 days' written notice of non-renewal before the end of the then-current term. The Initial Term and any Renewal Terms together are the "**Term**".

## 3. The Services

3.1 The Supplier shall provide the lift and elevator maintenance services described in Schedule 1 and the Order Form (the "**Services**") at each Property with the skill, care and diligence to be expected of a competent and experienced provider of such services, in accordance with applicable law, manufacturer guidance and recognised industry standards.

3.2 Without limiting clause 3.1, the Supplier shall:

(a) attend a passenger entrapment within 1 hour, and any other lift fault within 4 hours, in each case of being notified by the Customer or the relevant Property; and

(b) perform the statutory thorough examinations of every lift at the Properties and deliver the resulting inspection certificates to the Customer.

3.3 The Supplier shall use suitably qualified, trained and competent personnel, and shall comply with the reasonable site, health and safety, and security rules of each Property notified to it.

3.4 The Customer shall give the Supplier reasonable access to each Property and the lifts, and such information as the Supplier reasonably requires to perform the Services.

3.5 Service levels and any remedies for failure to meet them are set out in the Order Form.

## 4. Fees, Invoicing and Payment

4.1 The Customer shall pay the fees set out in the Order Form (the "**Fees**"). The annual Fees are USD 180,000 and the total contract value over the Initial Term is USD 540,000.

4.2 The Supplier shall invoice the Fees as stated in the Order Form. Each invoice must be valid, addressed to the Customer and identify the relevant Property and Services.

4.3 The Customer shall pay undisputed invoices within 30 days of receipt of a valid invoice.

4.4 If the Customer disputes an invoice in good faith, it shall notify the Supplier promptly, pay the undisputed portion, and the Parties shall seek to resolve the dispute promptly. The Supplier shall continue to perform the Services pending resolution.

4.5 Unless stated otherwise in the Order Form, the Fees are exclusive of value added tax, which shall be payable in addition on receipt of a valid VAT invoice. The Fees are the Supplier's entire remuneration for the Services.

## 5. Order Form Commercial Terms

| Item | Term |
|---|---|
| Customer | Seabright Hotels & Resorts Ltd |
| Supplier | Halcyon Elevator & Lift Maintenance Ltd |
| Initial Term | 36 months from the Effective Date until 11 December 2027 |
| Renewal | Automatic, successive 12-month periods; 120 days' written notice of non-renewal |
| Annual Fees | USD 180,000 |
| Total contract value (Initial Term) | USD 540,000 |
| Payment terms | Undisputed invoices payable within 30 days of receipt of a valid invoice |
| Entrapment response | Attendance within 1 hour |
| Other lift fault response | Attendance within 4 hours |
| Statutory examinations | Every lift, with inspection certificates delivered to the Customer |

| Item | Term |
|---|---|
| Warranty period | 90 days |
| Minimum insurance | USD 5,000,000 per claim |
| Liability cap | Two (2) times the fees paid or payable in the preceding 12 months |
| Termination for convenience | Customer, on 90 days' written notice |
| Governing law | Laws of England and Wales |

## 6. Warranties

6.1 The Supplier warrants that: (a) it has full power and authority to enter into and perform this Agreement; (b) the Services will be performed in accordance with clause 3 and Schedule 1; and (c) it holds, and will maintain throughout the Term, all licences, accreditations and consents required to perform the Services.

6.2 The Supplier warrants that all Services, and all parts, materials and workmanship supplied or carried out under this Agreement, will be free from defects for 90 days from performance or supply (the "**Warranty Period**"). During the Warranty Period the Supplier shall, at its own cost and promptly, re-perform the Services or repair or replace the defective items.

6.3 The warranties in this clause are in addition to any rights or remedies the Customer may have by law.

## 7. Insurance

The Supplier shall maintain throughout the Term, with reputable insurers, public liability and professional indemnity insurance (and employer's liability insurance as required by law) providing cover of at least USD 5,000,000 per claim, and shall provide evidence of that cover on the Customer's reasonable request.

## 8. Intellectual Property

8.1 Each Party retains ownership of its pre-existing intellectual property rights. Nothing in this Agreement transfers ownership of those rights.

8.2 Reports, records, certificates and other deliverables created by the Supplier specifically for the Customer under this Agreement shall belong to the Customer, and the Supplier grants the Customer a perpetual, royalty-free licence to use any Supplier materials incorporated in them for the Customer's business purposes.

## 9. Confidentiality

9.1 Each Party shall keep confidential all non-public information of the other Party (including information relating to the Properties, their security, and the commercial terms of this Agreement) received in connection with this Agreement, shall use it only to perform or receive the Services, and shall not disclose it except to its employees, advisers and subcontractors who

need to know it and are bound by equivalent obligations, or as required by law or a competent authority.

9.2 This clause does not apply to information that is or becomes public other than through breach, was lawfully known to the recipient beforehand, or is independently developed.

9.3 The obligations in this clause 9 survive for 2 years after this Agreement ends.

## 10. Data Protection

The Parties acknowledge that the Services do not involve the processing of personal data on behalf of the Customer. Each Party shall comply with applicable data protection law in respect of any incidental personal data (such as business contact details) it handles. If the scope of the Services changes so that personal data will be processed, the Parties shall first agree appropriate written data processing terms.

## 11. Liability

11.1 Nothing in this Agreement limits or excludes either Party's liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any liability that cannot lawfully be limited or excluded.

11.2 Subject to clause 11.1, each Party's aggregate liability arising under or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty or otherwise, is limited to two (2) times the fees paid or payable in the twelve (12) months preceding the claim.

11.3 Subject to clause 11.1, neither Party is liable for any indirect or consequential loss, or for loss of profit, arising under or in connection with this Agreement.

## 12. Indemnity

12.1 The Supplier shall indemnify the Customer against all losses, damages, costs and expenses arising from third-party claims for personal injury, death or damage to property to the extent caused by the negligence or breach of this Agreement by the Supplier, its personnel or subcontractors.

12.2 The indemnified Party shall promptly notify the indemnifying Party of any claim, allow it to conduct the defence and settlement (provided that it does not settle on terms imposing liability on the indemnified Party without consent, not to be unreasonably withheld), and give reasonable assistance at the indemnifying Party's cost.

## 13. Termination

13.1 The Customer may terminate this Agreement without cause on 90 days' written notice to the Supplier.

13.2 Either Party may terminate this Agreement immediately by written notice if the other Party: (a) commits a material breach that is incapable of remedy, or that it fails to remedy within 30 days of written notice requiring remedy; or (b) becomes insolvent, enters

administration, liquidation or any arrangement with its creditors, or ceases to carry on business.

13.3 The Customer may terminate immediately by written notice if the Supplier loses any licence or accreditation required to perform the Services or repeatedly fails to meet the response times in clause 3.2(a).

13.4 On termination or expiry, the Customer shall pay undisputed Fees for Services properly performed up to the termination date, the Supplier shall promptly deliver all outstanding inspection certificates and records relating to the lifts, and the Supplier shall co-operate in an orderly handover to the Customer or its replacement supplier.

13.5 Clauses 6.2, 8, 9, 11, 12, 13.4, 16 and 17, and any other provision intended to survive, survive termination or expiry, subject to the periods stated in them.

## 14. Subcontracting and Assignment

14.1 The Supplier shall not subcontract or assign any of its rights or obligations without the Customer's prior written consent, and remains responsible for the acts and omissions of its subcontractors.

14.2 The Customer may assign this Agreement to any member of its group or to a successor to the business of the Properties on written notice to the Supplier.

## 15. Notices

Notices under this Agreement must be in writing and delivered by hand, by recorded delivery, or by email to the address the receiving Party has notified for that purpose. A notice is deemed received on delivery if by hand, at the time recorded if by recorded delivery, and at the time of transmission if by email (or, if outside business hours, at the start of the next business day).

## 16. General

16.1 **Entire agreement.** This Agreement is the entire agreement between the Parties on its subject matter and supersedes all prior understandings. Each Party acknowledges it has not relied on any statement not set out in it.

16.2 **Variation.** No variation is effective unless in writing and signed by both Parties.

16.3 **Force majeure.** Neither Party is liable for delay or failure caused by events beyond its reasonable control, provided it notifies the other promptly and uses reasonable efforts to mitigate. This clause does not excuse the Supplier from the statutory examination obligations once the event has ceased.

16.4 **Waiver and severance.** A failure to exercise a right is not a waiver. If any provision is held unenforceable, the remainder continues in effect.

16.5 **No partnership.** Nothing in this Agreement creates a partnership, agency or employment relationship between the Parties.

16.6 **Counterparts.** This Agreement may be executed in counterparts, each of which is an original.

## 17. Governing Law and Jurisdiction

17.1 This Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes) are governed by the laws of England and Wales.

17.2 The courts of England and Wales have exclusive jurisdiction to settle any such dispute or claim.

## Schedule 1 – Services and Service Levels

| Item | Requirement |
|---|---|
| Scope | Planned preventive maintenance, breakdown repair and call-out for all passenger and service lifts at the Properties |
| Passenger entrapment | Attendance within 1 hour of notification |
| Other lift fault | Attendance within 4 hours of notification |
| Statutory thorough examinations | Performed on every lift at the required statutory intervals; inspection certificates delivered to the Customer |
| Reporting | Service report after each visit, recording work done, faults found and recommended works |
| Warranty | 90 days, per clause 6.2 |

The Supplier shall maintain a 24-hour emergency contact line for each Property throughout the Term.

## Signatures

Signed for and on behalf of **Seabright Hotels & Resorts Ltd**

Name: Michael Brennan Title: Chief Procurement Officer Signature: _____ Date: 01 December 2024

Signed for and on behalf of **Halcyon Elevator & Lift Maintenance Ltd**

Name: Daniel Okafor Title: Authorised Signatory Signature: _____ Date: 04 December 2024